

SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC and EXPRESS SERVICES, INC. d/b/a EXPRESS EMPLOYMENT PROFESSIONALS
Case No. CU23-02346

Plaintiff's Motion to Compel EXPRESS's Compliance with Discovery Order

TENTATIVE RULING

The Parties are to appear to address the appropriate sample size and special interrogatories 7 and 8.

TROY ANDERSON vs. WARDEN OF CALIFORNIA MEDICAL FACILITY
Case No. CU23-02408

Defendants Demurrer to Plaintiff's Complaint

TENTATIVE RULING

The Parties are to appear.

Plaintiff filed an amends complaint and an opposition to the motion to dismiss. Plaintiff has not filed any proof of service showing that this written submission was served on Defendant. The Parties are to appear to address whether Defendant was served with Plaintiffs filing.

CHRISTIAN IBARRA; ET AL. vs. CALIFORNIA DEPARTMENT OF TRANSPORTATION; ET AL.
Case No. CU24-01023

Demurrer to SAC

TENTATIVE RULING

Defendant AECOM Technical Services, Inc.'s demurrer to Plaintiffs' second amended complaint is sustained without leave to amend.

The court takes judicial notice of the Organizational Record Forms for Defendant AECOM dated December 10, 2008 and September 8, 2023 as the records of a state administrative agency. (Evid. Code § 452(c); *Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1750.)

The requirement of a certificate of merit applies to every action "arising out of the professional negligence ***of a person holding a valid architect's certificate*** ... or ***of a***

person holding a valid registration as a professional engineer". (Code Civ. Proc. § 411.35(a), emphases added.) The failure to file a certificate is grounds for a demurrer. (Code Civ. Proc. § 411.35(g).)

A corporation may be a "person holding a valid registration as a professional engineer". (Bus. & Prof. Code § 6738(a); see, e.g., *Curtis Eng'g Corp. v. Superior Court* (2017) 16 Cal.App.5th 542, 545-546 [applying section 411.35 to a corporate provider of engineering services]; *Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 357 [same].) The judicially noticed records establish that Defendant AECOM was a corporate provider of professional engineering services with licensed engineers as owners or officers in charge at all times relevant to Plaintiffs' claims. (RJN, Exhs. A-B.)

Despite Plaintiffs' attempt to argue otherwise, all of their claims against Defendant AECOM arise out of its alleged professional negligence. Plaintiffs explicitly alleged that Defendant "is in the business of providing construction design services" (SAC, ¶ 9) and breached its duty to Plaintiff by negligently "engineering" and "designing" the construction work. (SAC, ¶¶ 35, 45.) More specifically, Plaintiffs allege that Defendant failed to "properly clos[e] off the subject premises to civilian vehicles". (*Ibid.*) Any misconfiguration of the "delineators" that might have improperly permitted unauthorized vehicles into the work area involves engineering judgment and constitutes professional work product. Being able to properly discern issues to address from inspections of the worksite (or to determine whether the manner of inspection is adequate) would also require specialized engineering judgment. Consequently, Plaintiffs' counsel was required to file and serve the certificate pursuant to section 411.35(b) before the date of service of the complaint on any defendant or, if Plaintiffs' counsel was unable to obtain the consultation because a statute of limitations would impair the action, within 60 days after filing the complaint.

FELICIA PRATER BROWN vs. COLONIAL CHAPEL VALLEJO
Case No. CU24-07061

Defendant's Motion to Dismiss

TENTATIVE RULING

Defendant COLONIAL CHAPEL VALLEJO's unopposed motion to dismiss Plaintiff FELICIA PRATER BROWN's complaint against it is granted. On September 9, 2025 this court granted Defendant's motion for judgment on the pleadings against Plaintiff's complaint with leave to amend, permitting Plaintiff to file an amended complaint within thirty days. Plaintiff never filed an amended complaint. The court uses its discretion to dismiss her complaint against Defendant now per Code of Civil Procedure section 581, subdivision (f)(2).
